

Tentative Rulings

June 9, 2026

Department S-17

Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, the tentative ruling will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *SA California Group, Inc., v. Tucciarone, et al*, Case No. CIVSB2208478
Judgment Creditor's Motion for Order Selling Dwelling/ Real Property (Salina Property)
Judgment Creditor's Motion for Order Selling Dwelling/ Real Property (Travis Property)
Judgment Creditor's Motion for Order Selling Dwelling/ Real Property (Socorro Property)
6/9/26, 9:00 a.m., Dept. S-17

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As to Requests for Judicial Notice: The Court would **GRANT** Judgment Creditor's request as to facts predicated on recorded documents or court filings. However, it would **DENY** as to the two facts concerning homestead exemption and taxes, which are based on website information.

As to Evidentiary Objections: The Court would **OVERRULE** Judgment Debtor's evidentiary objections.

As to the Applications: The Court would **DENY**. Even though the properties are not subject to a homestead exemption, the fair market value is insufficient to cover senior liens and encumbrances and still satisfy some portion of the judgment.

Case Summary

This is a post-judgment collection effort. This aged judgment was renewed most recently on February 28, 2022.

Relevant here, Judgment Creditor WVJP filed three Applications to Sell Dwellings as a means to collect on the judgment against Judgment Debtor Tucciarone. Specifically, the Judgment Creditor seeks sales of the Salina, Travis, and Socorro properties. On April 6, 2026, the Court issued orders to show cause for why the at-issue properties should not be sold.

Summary of the Law

By law, a judgment creditor on a money judgment must obtain a court order before selling the dwelling of a natural person and the dwelling exemption must be determined. (Code Civ. Proc., § 704.740(a).) Upon the filing of the application, the court shall set a time and place for the hearing and order the judgment debtor to show cause why an order for sale shall not be made. (Code Civ. Proc., § 704.770(a).) No later than 30 days before the hearing, the judgment creditor shall serve a copy of the order to show cause, the application, and the notice of the hearing on (1) the judgment debtor personally or by mail and (2) any occupant of the dwelling personally or by posting in a conspicuous place at the dwelling. (Code Civ. Proc., § 704.770(b).)

Analysis

Timeliness: As a preliminary matter, Judgment Debtor argues that the instant applications are untimely. The Court disagrees. The Creditor has 20 days from the date the levying officer service notice of levy to seek an order to sell a homestead dwelling; otherwise, the levy is released. (Code Civ. Proc., § 704.750(a).) If served by mail, the 20 days is extended by five days.

Here, the sheriff served the notices on January 20, 2026, by mail. (See e.g., Socorro Appl., ¶17.) Thus, they are timely.

Next, the Debtor also argues that the OSC is untimely as it must be heard within 45 days. The relevant provision allows the Court to set a hearing at a later date upon a showing of good cause. Certainly, court availability is good cause, especially in light of no showing of prejudice.

Process: Next, the Debtor argues that Creditor failed to attest to the applications under oath, and it was not sufficient for Creditor's *counsel* to do so. Certainly, Code of Civil Procedure section 704.760 does require the application to be made under oath. However, there is nothing in the statute or law that precludes the Creditor's *agent* from making that attestation. (See e.g. *Meyer v. Sheh* (2022) 74 Cal.App.5th 830, 841-842 [recognizing the attorney signed the application and raised no concern of that being improper].)

Merits: First, the properties are not Article 4 homesteads because Debtor had not resided in any of the properties on or after the issuance of the Abstract of Judgment on May 13, 2023. Rather, the Salina and Travis Properties are rental properties, and Tucciarone moved out of the Socorro property on or around May 29, 2003. (Salina-Travis Appl., ¶¶4, 11; Socorro Appl., ¶¶5, 12; Walker Decl., ¶8, Exh. E.) Second, the properties are not Article 5 homesteads because no homestead exemptions were recorded. (Salina-Travis Appl., ¶17; Socorro Appl., ¶18; Walker Decl., ¶¶12, 15, Exhs. H & J.)

However, the Court has concerns about the senior encumbrances: Now, "If the proposed sale is unlikely to yield a bid high enough to cover the homestead exemption plus any preexisting liens and encumbrances, leaving no money left over to pay off even a part of the judgment creditor's lien, the application should be denied. (*Meyer, supra*, 74 Cal.App.5th at p. 838.) On the other side, if a bid for the property will likely exceed the homestead exemption and all senior liens and encumbrances, and leave some amount available to pay a part of the judgment creditor's lien, then the application must be granted. (*Id.* at pp. 838-839.)

Here, all three properties have senior encumbrances that exceed the value of the properties. The fair market value of the three properties total around \$2M, whereas the liens are at approximately \$7M. The value of the properties are insufficient to pay all outstanding senior liens.
